

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 12, 2026 TIME: 8:30 A.M.

following violations among others: heavy cockroach infestation, broken interior walls, broken deteriorated flooring on front porch, falling ceiling, deteriorated, over-fused electrical wiring, lack of proper plumbing connection to sewage system in bathroom, sewage under bathroom floor, leaking roof, broken windows, and fire hazard. (*Stoiber, supra*, 101 Cal.App.3d at 912.) At this stage in the litigation, plaintiff has satisfied the pleading requirements for punitive damages and the motion to strike is denied.

No. 26CV00475

LARSSON v. ESCHEN

DEFENDANT JAMES ESCHEN'S MOTION FOR JUDGMENT ON THE PLEADINGS

The motion is denied.

Self-represented plaintiff April Larsson sued her former attorney, defendant James Eschen, for legal malpractice for allegedly failing to properly handle her creditor claim in a bankruptcy. She alleges Eschen falsely advised her that the mandatory creditors' meeting had been continued, failed to notify her of critical proceedings in the action, abandoned representation without notice, failed to preserve her rights as a creditor, and as a direct result she lost the opportunity to protect her \$72,739.92 judgment against the debtor. Her complaint states causes of action for professional negligence, breach of fiduciary duty, and breach of contract. Defendant filed his answer on April 9, 2026.

On May 1, 2026, defendant filed this motion contending the complaint fails to state essential elements: (1) that the underlying judgment was collectible; (2) that plaintiff would have recovered the judgment absent defendant's conduct, and (3) that defendant's conduct was the proximate cause of the loss.

The court will consider plaintiff's late-filed opposition.

A motion for judgment on the pleadings serves the function of a demurrer, challenging only defects on the face of the complaint. As with a demurrer, the grounds for a motion for judgment on the pleadings must appear on the face of the complaint or from a matter of which the court may take judicial notice. A trial court's determination of a motion for judgment on the pleadings accepts as true the factual allegations that the plaintiff makes. In addition, it gives them a liberal construction. (Code Civ. Proc., § 438; *Eckler v. Neutragena Corp.* (2015) 238 Cal.App.4th 433, 439; *Gerawan Farming, Inc. v. Lyons* (2000) 24 Cal.4th 468, 515-516.)

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The court finds plaintiff has alleged all the elements required for her three claims. The cases cited by defendant go to the proof of her claims at trial, not required elements for pleading. (See *Kaushansky v. Stonecroft Attorneys, APC* (2025) 109 Cal.App.5th 788; *Wise v. DLA Piper LLP* (2013) 220 Cal.App.4th 1180; *Blanks v. Seyfarth Shaw LLP* (2009) 171 Cal.App.4th 336; *DiPalma v. Seldman* (1994) 27 Cal.App.4th 1499; *Viner v. Sweet* (2003) 30 Cal.4th 1232.)

No. 25CV02922

CHEN v. TSE

DEFENDANTS' DEMURRER TO THE FIRST AMENDED VERIFIED COMPLAINT

The demurrers to the first and third causes of action are overruled. The demurrer to the second cause of action is sustained without leave to amend and the demurrer to the fourth cause of action is sustained with leave to amend.

I. FIRST AMENDED COMPLAINT AND DEMURRER

Plaintiffs Chen and Liu filed this verified complaint against defendants for judicial dissolution of a limited liability company, partition of real property, declaratory relief, and accounting. Plaintiffs assert that in 2014 defendant Tse solicited plaintiffs, both then residing in China, to invest in California real estate through an LLC holding company, defendant Transmarinis Re Investment, LLC. (FAC at ¶16.) Plaintiffs invested approximately \$400,000.00 in the LLC and became non-managing members. Chen held an 18% interest and Liu a 7% interest. Defendants Tse and Fok hold 30% and 20% membership interests and are its managing members. (FAC at ¶ 18.) At issue are two properties which the LLC purchased: one in Hayward and another in Ben Lomond. On May 1, 2018, Tse and Fok refinanced the loan secured by the Hayward property with a loan from Chase Bank, taking \$490,000.00 for themselves from the transaction. (FAC at ¶¶ 19-22.) In April of 2025, plaintiff Liu discovered the misconduct. “Plaintiffs only received sporadic cash dividend of about \$150,000.00 but never received any formal accounting or any property report about the conditions of the Hayward and Ben Lomond Properties.” (FAC at ¶ 25.)